
MASTER AGREEMENT - SAAS SERVICES

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AGREEMENT COVER SHEET

Document Type: Master Agreement (SaaS) v2021.6.1

Date: [Current Date]

BETWEEN:

The Customer:

ABC Company

[Address]

[City, Country]

AND

The Supplier:

Supplier Co.

[Address]

[City, Country]

(collectively the "Parties")

This page is intentionally left as a cover page to the Master Agreement.

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MASTER AGREEMENT (v2021.6.1)

BETWEEN:

A. ABC COMPANY, a company under the laws of [Country], with its registered office and principal place of business in [City] ([Postcode]), [Country], at the [Address], represented as set forth below (hereinafter referred to as: '**Customer**'), and;

B. SUPPLIER CO., a private company with limited liability, registered under the laws of the Netherlands, with its registered office and principal place of business in [City], [Country], and its Affiliate, Supplier Co. Ltd (together hereinafter referred to as '**Supplier**').

(Individually Customer or Supplier hereinafter also referred to as 'Party' and collectively as 'Parties').

THE PARTIES HEREBY AGREE AS FOLLOWS:

1. **Scope:** Customer and Supplier agree that Supplier will make available to Customer certain (A) access to and rights to use the SaaS and (B) Other Services, on and in accordance with the terms of this Master Agreement and its Exhibits (hereinafter collectively referred to as the 'Agreement')¹.
2. **Fees:** In consideration for the provision of the Services, Customer shall pay the Fees in accordance with the provisions of the Agreement².
3. **Term:** The Master Agreement is entered into unless and until terminated by either Party in accordance with its terms, and the Effective Date of this Agreement is the date of the last signature by the Parties, as set forth below ('Effective Date')³.
4. **Order Forms:** The start dates (and any additional terms, if any) of each Order Form are set forth in the respective Order Form⁴. Defined terms referred to above are as defined in Exhibit D below.
5. **Documents:** This Agreement consists of the following documents:
 - i. This (signing) page
 - ii. Exhibit A.Sa. 01: SaaS Order Form
 - iii. Exhibit B.Se.01: Other Services Order Form
 - iv. Exhibit C: Contact Details
 - v. Exhibit D: Supplier Terms and Conditions v2021.6.1 ('Terms')
 - vi. Other Exhibit(s) as Parties further agree upon in writing, if any⁵.

The aforementioned documents collectively are part of and together form the Agreement. Any reference to the Agreement shall be deemed to include a reference to said documents. Customer hereby confirms and acknowledges (i) the receipt of a copy of each of the aforementioned documents; and (ii) that this Agreement applies to the exclusion of any other terms which the Customer may seek to impose or incorporate, or which are implied by law, trade custom, practice or course of dealing⁶.

This Agreement constitutes the entire agreement between Customer and Supplier and supersedes, replaces and extinguishes any previous arrangement, understanding or agreement, whether written or oral, between the Parties with respect to the subject matter of this Agreement. Changes or other amendments or supplements to the Agreement are only valid and effective if these are agreed upon in writing between Parties, except as otherwise expressly set forth in the Agreement⁷.

This Agreement is signed by the Parties on the date set out below.

SIGNATURE PAGE

ABC COMPANY

Name: [Name]

Title: [Title]

Date: _____ 8

SUPPLIER CO.

Name: [CEO Name] / [CFO Name]

Title: Chief Executive Officer / Chief Financial Officer

Date: _____ 9

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EXHIBIT A.Sa.01

SAAS ORDER FORM

The following table sets forth the agreed SaaS subscription details:

Line Item	SaaS Description	Number of Named Users	SaaS Fee
1	Supplier Software [Module A]	[#]	[#] per calendar month
2	Supplier Software [Module B]	[#]	[#] per calendar month
Total		[#]	[#] per calendar month

TERMS OF SAAS ORDER:

1. **Total Annual SaaS Fee:** [Amount]¹¹.
2. **Support Fee:** The Fees for annual SaaS Support as per the applicable Order Form are included in the annual SaaS Fee¹².
3. **Implementation/Other Fees:** Described in the respective Exhibit B.Se.[#]¹³.
4. **Duration:** The SaaS will be provided for an initial duration of three (3) years ('Initial Period') from [Date] ('Start Date')¹⁴.
5. **Renewal:** Thereafter, the SaaS subscription will be renewed automatically, each time for a period of twelve (12) months (each a 'Renewal Period'), unless the SaaS subscription is terminated by either Party by at least three (3) calendar months written notice before the end of the Initial Period or then current Renewal Period¹⁵.
6. **Termination:** The SaaS subscription cannot be terminated before the end of the Initial Period or a Renewal Period (as applicable) without cause¹⁶.
7. **Adjustments:** Downsizing the number of Named Users is only allowed on the renewal date of the Initial Period or then current Renewal Period. When available storage capacity is exceeded, it will automatically be increased against the then current rate¹⁷.
8. **Invoicing:** Invoices for the SaaS Fee are due and payable each calendar year in advance. If the initial Start Date is not 1 January, the SaaS Fee will be prorated¹⁸.
9. **Payment Terms:** All Fees are in Euro (EUR), excluding VAT. Invoices shall be due and payable at the latest within thirty (30) days after the invoice date¹⁹.

Accepted by:

ABC COMPANY

Name: _____

Date: _____ 20

SUPPLIER CO.

Name: _____

Date: _____ 21

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EXHIBIT B.Se.01

OTHER SERVICES ORDER FORM

Services	Services Fees
Consultancy/Implementation	[#]
Project management	[#]
Training	[#]
Total	[#]

22

TERMS OF SERVICES:

a) All Services Fees, prices and rates are in Euro (EUR), excluding VAT and other government levies and sales taxes that may be due²³.

b) Training Fees will be invoiced as per signed Services Order Form²⁴.

c) Other Services Fees will be invoiced weekly on the basis of time spent²⁵.

d) On-site activities occur only in exceptional cases and on specific request²⁶.

e) Car travel arrangements:

* Up to 250 km from Supplier Office: EUR 157 fixed fee.

* Over 250 km: (a) EUR 0.35 per km driven per visit (both ways), (b) EUR 77 per hour for travel time (both ways), and (c) EUR 40.00 meal allowance per day (lump sum) ²⁷.

f) Other travel as well as accommodation and related incidental expenses will be invoiced at cost²⁸.

g) Services or Service Orders cannot be terminated early without cause²⁹.

h) Invoices shall be due and payable at the latest within thirty (30) days after the invoice date³⁰.

Accepted by:

ABC COMPANY

Name: _____

Date: _____ 31

SUPPLIER CO.

Name: _____

Date: _____ 32

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EXHIBIT C

CONTACT DETAILS

1. BILLING ADDRESS - ABC COMPANY

- **Corporate Name:** ABC Company
- **Attention:** [Mr./Ms. Name]
- **Title:** [Title]
- **Address:** [Address]
- **City/Postcode:** [City, Postcode]
- **Country:** [Country]
- **Email:** [Email]
- **IBAN:** [IBAN]
- **VAT Number:** [VAT] ³³

2. CORRESPONDENCE ADDRESS - ABC COMPANY

- **Corporate Name:** ABC Company
- **Attention:** [Mr./Ms. Name]
- **Title:** [Title]
- **Address:** [Address]
- **City/Postcode:** [City, Postcode]
- **Country:** [Country]
- **Email:** [Email] ³⁴

3. SUPPLIER SUPPORT CONTACT

- **Helpdesk:** +31 [Number]
- **Support Website:** www.[supplier].com/support ³⁵

4. OTHER CONTACT DETAILS

- **ABC Company Primary Support Contact:** [Name], [Phone], [Email]
- **ABC Company Secondary Support Contact:** [Name], [Phone], [Email]

- **Supplier Primary Contact:** [Name], [Phone], [Email]³⁶

Note: At the discretion of either Party, the contact may be changed from time to time upon written notice. Formal notice of changes is to be sent to the attention of the Financial department of the Supplier. Support Contacts of Customer should have followed an official training by Supplier about the SaaS and related Other Services³⁷.

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EXHIBIT D

SUPPLIER TERMS AND CONDITIONS

These Terms and Conditions (hereinafter referred to as: 'Terms'), together with the Master Agreement and Exhibits, form the 'Agreement' governing the basis on which Supplier will make available to Customer the ability to access and use the SaaS, and provide Other Services³⁸.

1. DEFINITIONS

- **'Agreement':** any agreement or legal relationship between Parties related to the SaaS and Other Services³⁹.
- **'Affiliate':** entities that directly or indirectly control, are controlled by, or are under common control with the Party specified⁴⁰.
- **'Business Day':** Monday to Friday, 08.30 to 17.00 local time in the Netherlands, excluding national holidays⁴¹.
- **'Customer':** ABC Company.
- **'Customer Data':** any data (including personal data) held or processed by Supplier on the SaaS on behalf of the Customer⁴².
- **'Data Protection Legislation':** all applicable legislation relating to personal data, including the GDPR⁴³.
- **'Documentation':** official user manuals, Support Policy, and Privacy Policy as updated by Supplier from time to time⁴⁴.
- **'Error':** an error in the SaaS that means it does not meet the Documentation in a substantial way⁴⁵.
- **'Fees':** fees payable by Customer including SaaS Fees and Services Fees⁴⁶.
- **'Named User':** an individual person (employee, consultant, contractor) with a unique identity for accessing the SaaS. Access may be reassigned after a minimum period of 10 Business Days⁴⁷.

- **'Order Form'**: an order form agreed by the Parties for any Services (Exhibit A or B)⁴⁸.
- **'Other Services'**: services such as consultancy and support set out in an Other Services Order Form⁴⁹.
- **'SaaS'**: the Supplier EAM (Enterprise Asset Management) software made available on a software-as-a-service basis⁵⁰.
- **'Supplier'**: Supplier Co. as defined in the Master Agreement.

2. TERMS & AGREEMENT

2.1 These Terms apply to the exclusion of any other terms Customer may seek to impose⁵¹.

2.2 Proposals are invitations to place an order and are without engagement⁵².

2.3 The Agreement is valid once Supplier has expressly authorized and signed it⁵³.

2.4 The Agreement is a master framework agreement. It cannot be terminated if any pending SaaS Order Form or Other Services Order Form are still in effect⁵⁴.

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3. SAAS

3.1 Grant of Right: From the Start Date, Supplier grants a non-exclusive, non-transferable right to Customer and Named Users to access and use the SaaS for internal business operations on an "as-is" basis⁵⁵.

3.2 Availability: Supplier will make commercially reasonable efforts to make the SaaS available. Customer's obligation to pay Fees remains in full force notwithstanding actual availability, except as explicitly set forth in Documentation⁵⁶.

3.3 Warranty: Supplier expressly disclaims all warranties, express or implied, including merchantability and fitness for a particular purpose. Supplier does not warrant that the SaaS will be error-free or uninterrupted. Customer assumes sole responsibility for its use of the SaaS⁵⁷.

4. OTHER SERVICES

4.1 Supplier may render Other Services as agreed in an Order Form. Services shall be rendered at a location determined by Supplier unless agreed otherwise⁵⁸.

4.2 Supplier shall make commercially reasonable efforts to provide Other Services. Time for performance is 'not of the essence'. Supplier is not liable for delay caused by the Customer⁵⁹.

4.3 References to 'days' mean Business Days unless specified otherwise⁶⁰.

5. FEE AND PAYMENT

5.1 Customer shall pay Fees as set out in the Order Form. Fees are in EUR and exclusive of VAT 61.

5.2 SaaS Fees are due and payable each year in advance⁶².

5.3 Invoices must be paid no later than thirty (30) calendar days after the invoice date without setoff or suspension 63.

5.4 Supplier is authorized to adjust Fees annually. If an increase exceeds the Service Price Index (SPPI), Supplier shall notify Customer three (3) months prior 64.

5.5 Customer shall pay reasonable travelling and incidental expenses incurred by Supplier⁶⁵.

5.6 Late payments incur interest of at least 1.5% per month, and Supplier may suspend Services⁶⁶.

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6. CUSTOMER OBLIGATIONS

6.1 Customer systems must meet requirements set forth in the Documentation⁶⁷.

6.2 Customer shall provide Supplier with all data, access, and facilities reasonably needed to provide Services⁶⁸.

6.3 Customer warrants that information provided is correct and shall inform Supplier of changes 69.

6.4 Customer is responsible for its selection and use of the SaaS and compliance with applicable laws 70.

6.5 Customer shall ensure Named Users keep passwords confidential and notify Supplier of unauthorized access⁷¹.

6.6 Prohibited Uses: Customer and Named Users shall not:

- Use the SaaS to transmit unlawful or unsolicited material⁷².
- Store or distribute viruses or attack the SaaS⁷³.
- Attempt to reverse engineer, copy, or create derivative works of the SaaS⁷⁴.
- Access the SaaS to build a competing product or service⁷⁵.
- License, sell, or commercially exploit the SaaS to third parties⁷⁶.

6.7 Supplier may audit the use of the SaaS to ensure compliance⁷⁷.

6.8 Failure to comply with obligations allows Supplier to suspend execution or access and charge costs incurred 78.

7. CONFIDENTIALITY

7.1 Parties shall treat data and information obtained from the other Party as confidential⁷⁹.

7.2 Confidential information does not include information publicly known or lawfully disclosed by a third party. Disclosure is permitted with prior written permission or if required by law ⁸⁰.

7.3 Supplier may refer to the Customer in marketing materials in general terms. Customer agrees Supplier may issue a press release after signing ⁸¹.

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8. INTELLECTUAL PROPERTY RIGHTS & DATA

8.1 Ownership: Intellectual property rights to Customer Data remain with Customer. Supplier owns all rights to the SaaS and any IP created in providing Services ⁸².

8.2 Indemnity: Supplier indemnifies Customer against third-party claims that the SaaS infringes IP rights in the UK or EU, provided Customer informs Supplier immediately and gives sole authority to defend ⁸³.

8.3 Data Responsibilities:

- Supplier does not control data traffic. Customer is solely responsible for content and accuracy of Customer Data ⁸⁴.
- Customer consents to processing and storage involving transmission over the internet ⁸⁵.
- Upon termination, Customer's right to access ceases. Customer may download data up to fourteen (14) Business Days after termination. Thereafter, Supplier may remove data ⁸⁶.

8.4 Data Processing: Customer is the data controller; Supplier is the data processor. Personal data processed includes names and emails of Named Users ⁸⁷.

8.5 Compliance: Customer must ensure it has a lawful basis for data transfer and indemnify Supplier for breaches of Data Protection Legislation ⁸⁸.

8.6 Supplier Obligations: Supplier will process data only to perform obligations, implement technical measures to protect data, ensure personnel confidentiality, and assist Customer with data subject requests and breach notifications ⁸⁹.

8.7 Sub-processors: Customer consents to Supplier appointing third-party processors. Supplier shall notify Customer of changes, and Customer may object within 14 days ⁹⁰.

9. LIMITATION OF LIABILITY

9.1 Liability Cap: Supplier's aggregate liability shall not exceed the amount of Fees paid in the six (6) months prior to the event giving rise to liability⁹¹.

9.2 Exclusions: Neither Party shall be liable for loss of profits, business, goodwill, data corruption, or indirect/consequential damages ⁹².

9.3 Claims: Claims must be made in writing within thirty (30) days of becoming aware of them⁹³.

9.4 Exceptions: Limitations do not apply to gross negligence or willful misconduct of Supplier management⁹⁴.

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10. TERMINATION

10.1 Without Cause: Each Party may terminate the Agreement without cause when there are no outstanding Order Forms⁹⁵.

10.2 Insolvency: Either Party may terminate immediately if the other Party becomes insolvent, enters liquidation, or ceases business ⁹⁶.

10.3 Breach: Supplier may terminate if Customer breaches obligations (including non-payment) and fails to remedy within fourteen (14) days of notice⁹⁷.

10.4 Effect: Upon termination, full payment under Order Forms becomes due. Provisions extending beyond termination survive⁹⁸⁹⁸⁹⁸⁹⁸.

11. FORCE MAJEURE

11.1 Supplier is not liable for failure or delay caused by circumstances beyond its control (Force Majeure Event), including acts of God, war, pandemic, riot, or utility failure. Time for performance shall be extended accordingly ⁹⁹.

12. MISCELLANEOUS

12.1 Assignment: Supplier may subcontract or assign rights. Customer may not assign rights without Supplier's written permission ¹⁰⁰.

12.2 Non-Solicitation: Parties agree not to employ each other's personnel involved in the Agreement for the duration plus one (1) year. Breach results in a penalty of one year's gross salary of the relevant employee ¹⁰¹.

12.3 Governing Law: The Agreement is governed by the laws of the Netherlands. The UN Convention on Contracts for the International Sale of Goods is excluded ¹⁰².

12.4 Disputes: All disputes shall be exclusively settled by the competent court of Amsterdam¹⁰³.

12.5 Severability: If any provision is invalid, it shall be deemed modified to the minimum extent necessary to be valid¹⁰⁴.

12.6 Waiver: A waiver of any right must be in writing¹⁰⁵.

12.7 Notices: Notices must be in writing and delivered by hand or post. Deemed delivered two Business Days after posting (domestic) or five (international) ¹⁰⁶.

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13. FINAL PROVISIONS

13.1 Headings: Headings are for convenience only and do not affect interpretation¹⁰⁷.

13.2 Entire Agreement: This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements.

CONFIRMATION OF AGREEMENT TERMS

By signing the Master Agreement (Page 3), the Parties confirm they have read, understood, and agreed to these Terms and Conditions (v2021.6.1).

End of Document